

DISSENTING OPINION BY M. ANZILOTTI.

[*Translation.*]

I consider that the Court should have declared that the application submitted to it on April 11th, 1932, by the Governments of Great Britain, France, Italy and Japan, was inadmissible; and had I to summarize in a few words the reasons for my opinion, I should say that it is based on the fact that this application does not embody the essential features of a claim for legal redress and tends to force the Court to deviate from the fundamental rules governing the activities of a judicial body.

1.—The application begins with the following statement:

“The dismissal of the President of the Memel Directorate, M. Böttcher, the appointment of a Directorate presided over by M. Simaitis and the dissolution of the Diet have given rise to differences of opinion as to whether these acts are in accordance with the Statute of the Memel Territory which is annexed to the Convention of May 8th, 1924.”

It would appear that this statement should logically have been followed by a request to the Court to pass upon certain points of law or of fact, and possibly also to indicate certain measures to which the applicant Powers believed themselves entitled, in consequence of the facts above mentioned and the differences of opinion to which they had led.

The application however asks the Court to decide:

“(1) whether the Governor of the Memel Territory has the right to dismiss the President of the Directorate;

(2) in the case of an affirmative decision, whether this right only exists under certain conditions or in certain circumstances, and what those conditions or circumstances are;

(3) if the right to dismiss the President of the Directorate is admitted, whether such dismissal involves the termination of the appointments of the other members of the Directorate;

(4) if the right to dismiss the President of the Directorate only exists under certain conditions or in certain circumstances, whether the dismissal of M. Böttcher, carried out on February 6th, 1932, is in order in the circumstances in which it took place;

(5) whether, in the circumstances in which it took place, the appointment of the Directorate presided over by M. Simaitis is in order ;

(6) whether the dissolution of the Diet, carried out by the Governor of the Memel Territory on March 22nd, 1932, when the Directorate presided over by M. Simaitis had not received the confidence of the Diet, is in order”.

Thus the application, instead of stating what the Applicants believed themselves entitled to claim from the Court, puts a series of questions to which the Court is asked to reply, as though what was required was an advisory opinion.

2.—It is nevertheless certain that the applicant Powers did not intend to ask the Court for an advisory opinion. In formulating the above questions, the intention of the applicant Powers was probably to indicate “the subject of the dispute”, in accordance with Article 40 of the Statute and Article 35 of the Rules of Court. But it is just this method of specifying “the subject of the dispute” which renders the application inadmissible.

In its judicial capacity, the Court cannot answer questions ; it must pass upon claims. The application mentioned in Article 40 of the Statute and Article 35 of the Rules is a claim for legal redress ; and in such a claim the specification of the subject of the dispute can only be a statement of that which the Applicant wishes to obtain from the Court and of the reasons of law or of fact on the basis of which he feels entitled to obtain it (*petitum et causa petendi*). A properly constituted action at law is only possible if a claim is presented in this form, for an action is hardly conceivable unless there is a person who makes against some other person a claim upon which it is for the judge to pass according to law.

3.—The foregoing leads to the following conclusion : The Court could not answer the questions put in the application, because by so doing, it would be giving an advisory opinion for which the applicant Powers were not entitled to ask and which the Court was not entitled to give.

On the other hand, it may be asked whether the Court could not base itself on the claims which the applicant Powers

subsequently presented in the form of submissions in their Memorial, in order to supplement or amend the application. Certainly, this would have been the only means whereby it might have been possible to overcome the flaw in the proceedings and to enable the Court to pass upon claims instead of answering questions.

In a procedural system like that of the Court, which is elastic and little rigid in form, and especially in a system where the application is followed by other written documents, I am inclined to hold that the Court may refer to documents subsequent to the application, in order to make good omissions or overcome defects in the instrument instituting proceedings. It would seem that this principle should be applied more especially when, as in the present case, the Party concerned omits to adduce the conclusions which it might have drawn from certain irregularities in the application.

I am, therefore, of opinion that if the Memorial had presented to the Court, in the form of submissions, claims corresponding to the points of the application and capable of eliminating any doubt as to the subject of the suit, the Court could have ignored the defects of the application and passed upon the claims formulated in the Memorial.

But, to my mind, it is very doubtful whether that is so. Since the submissions of the Memorial do not correspond with the questions in the application, grave doubts remain as to what the applicant Powers ask of the Court and as to the position of the Respondent in regard to at least one of the most important questions in the case.

4.—In this connection, the first four questions of the application, which are reproduced above, should be compared with the corresponding submissions (a) and (b) of the Memorial, where the Applicants ask the Court to decide :

“(a) that the Governor of the Memel Territory has no right to dismiss the President of the Directorate;

(b) that the termination of the appointment of the President of the Directorate does not *ipso facto* entail the termination of the appointments of the other members of the Directorate”.

Submission (a) corresponds to question 1 of the application and states in the form of a claim what the application

states in the form of a question. The same applies to submission (b) in respect of question 3 of the application; it should however be noted that the submission considerably enlarges this question since, instead of confining itself, like the latter, to the case of dismissal, it speaks generally of the termination of the appointment of the President of the Directorate.

But there is nothing in the submissions of the Memorial which corresponds to questions 2 and 4 of the application.

The application clearly disclosed a main plea—viz. that there is no right on the part of the Governor to dismiss the President of the Directorate—and an alternative plea—viz. that this right exists in certain conditions or circumstances, which did not obtain in the case of M. Böttcher's dismissal. The main plea had as its object the interpretation of the Statute of Memel, irrespective of the case in point, the examination of which it made superfluous; the alternative plea related to the case in point and only contemplated an interpretation of the Statute of Memel in so far as that interpretation was necessary to establish that M. Böttcher's dismissal was not in order.

In the submissions, the alternative plea has disappeared; the Applicants now merely ask the Court to say that there is no right of dismissal, without even mentioning the case in point; what they ask for therefore is a decision on an abstract question of interpretation.

It is of course permissible to abandon part of a plea. It should however be observed that in reply to a question specially put to them on the point, the Agents of the applicant Powers replied that their alternative plea had not been abandoned, and it may be added that the question of the legality of M. Böttcher's dismissal was discussed by them in their oral arguments. No plea, however, was formulated, and it was even stated at the hearings that the applicant Powers did not feel able to define the conditions and circumstances contemplated by questions 2 and 4 of the application: I do not therefore see upon what the Court could give a ruling.

5.—The obscurity in which the questions of the application, the submissions of the Memorial and the statements made at the public hearings by the Agents of the applicant Powers have thus left an essential part of their suit, is all the more serious in view of the respective positions of the two Parties.

A reference to the points in the application shows that the conclusions of the Lithuanian Counter-Memorial do not go beyond a request for the dismissal of the claims of the Applicants, so far as it was possible to ascertain these claims from the facts adduced and the questions formulated in the said application. Submission No. 2, which is given below, perhaps constitutes an exception, but question No. 2 of the application, to which this submission relates, is so vague and indefinite that it is really very difficult to say whether, and how far, the submission may involve a fresh claim.

The situation is altogether different if reference be made to the submissions of the Memorial. As I have just said, point 4 of the application, taken together with point 2—of which point 4 is an application—do not reappear in these submissions. On the other hand, the Respondent made the following submissions on these two points, in its Counter-Memorial :

“(2) that, in any event, the Governor of the Memel Territory is entitled to dismiss the President of the Directorate in the following cases :

(a) when the President has committed acts which compromise the sovereignty or unity of the Lithuanian State ;

(b) when the President has encroached upon the powers of the central authority ;

(c) when the President has exercised his powers in disregard of the principles of the Lithuanian Constitution ;

(d) when the President opposes the adoption by the local authorities of the measures necessary to apply in the Memel Territory international treaties concluded by Lithuania dealing with matters which are within the competence of the local authorities ;

(e) when the President opposes the adoption by the local authorities of the measures necessary to execute the provisions of the Statute and of those laws of the Republic which are applicable to the Territory ;

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(4) that the dismissal of M. Böttcher by the Governor of Memel on February 6th, 1932, was, in the circumstances in which it was effected, quite regular”.

If it be held, according to the application and the statements of the Agents of the applicant Powers, that the latter are asking the Court to declare that the dismissal of M. Böttcher was not in order in the circumstances in which it took place, the Lithuanian Government remains in the position of Respondent.

On the other hand, if regard be had to the submissions of the Memorial, there is no claim that the Court should say that the dismissal of M. Böttcher was not in order. In that event, it is manifest that the Respondent could have confined itself to requesting the Court to reject submission (a) and to declare that the Governor of the Memel Territory is entitled to dismiss the President of the Directorate. Submissions 2 and 4 of the Lithuanian Counter-Memorial would, in that case, extend the limits of the suit; they would consequently appear to be in the nature of a counter-claim, submitted with a view to obtaining an affirmation of the Governor's right to dismiss M. Böttcher, the President of the Directorate.

6.—This point was, in my view, of fundamental—one might even say: of decisive importance for the issue of the proceedings.

Though I am unable to concur either in the recitals or the operative clause of the present judgment in respect of question No. 1 of the application, I nevertheless agree with the Court that there are certain exceptional cases in which the Governor of the Memel Territory is entitled to dismiss the President of the Directorate, either with a view to ensuring the regular operation of the Memel constitutional system (see Art. 10, 12 and 17 of the Statute) or as a necessary means of defence against the consequences of a given act (see *ibid.*, Art. 16).

The question whether the right of dismissal has been exercised in a regular manner by the Governor in M. Böttcher's case depends therefore, to a great extent, on certain circumstances of fact, in particular on the character and subject of the conversations which had taken place at Berlin between M. Böttcher and certain German officials.

The first problem which arises—and without a solution of which it is impossible to arrive at a conclusion by judicial methods—is, accordingly, upon which of the Parties does the burden of proof rest.

Was there a burden of proof on the applicant Powers to show that the conversations at Berlin were purely of a private character—as was alleged by M. Böttcher himself, and by the representative of the German Government on the Council of the League of Nations? Or was the onus on the Lithuanian Government, as the counter-claimant, to prove that these conversations possessed that political character, contrary to the interests of Lithuania, which the Governor had regarded as justifying him in dismissing M. Böttcher? In my view, the whole question turned on this point of procedure: I willingly admit that the applicant Powers did not furnish satisfactory evidence in support of their case; but it is quite impossible to find in the documents adduced by the Lithuanian Government anything more than rather vague indications, merely serving as material for conjecture.

In these circumstances, it seems difficult to admit that the Court could ignore the defects of the application. The truth seems to be, rather, that the seriousness of the initial irregularity of the application instituting proceedings has become increasingly manifest during the subsequent proceedings. In my view, all that the Court could do was to take note of this irregularity and declare that it would not entertain the application.

7.—The foregoing observations apply strictly speaking to points 2 and 4 of the application. As regards points 1, 5 and 6, I hold that the Court could have given judgment upon submissions (a), (c) and (d) of the Memorial, which exactly correspond to the above-named points, while, at the same time, defining in more precise terms the claim of the applicant Powers. In regard to point 3 of the application and submission (b) of the Memorial, I am also willing to admit that the Court could have given judgment on this submission, confining it, however, to the case of dismissal.

It must however be remembered that in actual fact, as well as in the intention of the Applicants, the various questions in the application are closely bound up with one another and form an indivisible whole with its basis or starting-point in the dismissal of M. Böttcher. Once the Court had rejected the Applicants' argument concerning the abstract interpretation of the Statute of Memel (submission *a* of the Memorial), the concrete question whether M. Böttcher's dismissal was in order became the crux of the case. After the applicant Powers had declared that the so-called alternative claim set out in points 2 and 4 of the application was maintained, it was hardly possible for the Court to confine its decision to the other claims, which had been adequately stated in the submissions of the Memorial. The Court should therefore have declared that the application in its entirety was inadmissible.

(Signed) D. ANZILOTTI.